

THE UNITED REPUBLIC OF TANZANIA

JUDICIARY

IN THE HIGH COURT OF TANZANIA

SONGEA SUB-REGISTRY

AT SONGEA

MISCELLANEOUS CIVIL APPLICATION NO. 227 OF 2026

(Arising from Land Appeal No. 000021957 of 2025 from the High Court of Tanzania at Songea which originated from Land Application No. 145 of 2013 at the District Land and Housing Tribunal of Songea at Songea)

FLUMENSI LUOGAAPPLICANT

VERSUS

MATEI MHAGAMA.....RESPONDENT

RULING

10th & 31st August, 2026.

KAWISHE, J.:

The applicant filed the application seeking extension of time within which to file notice of appeal to the Court of Appeal out of time to challenge the decision of the High Court at Songea. The applicant has moved this Court under section 14 (1) of the Appellate Jurisdiction Act

[Cap 141 R.E 2023] by way of chamber summons supported by an affidavit sworn by the applicant.

The application was challenged by the respondent who filed counter affidavit disputing the reasons deposed by the applicant.

The parties agreed and prayed to the Court that the application be disposed of by way of written submission. The Court granted the prayer and ordered the parties to submit their submissions accordingly. The applicant enjoyed the legal services of Mr. Dickson Pius Ndunguru learned counsel whereas, the respondent had the services of Mr. Edson Mbogoro learned counsel.

Arguing in support of the application, Mr. Ndunguru submitted that the application for extension of time within which to file a notice of appeal to the Court of Appeal out of time is to avail the applicant with an opportunity to challenge the decision of the High Court. His main reason being that, the applicant believes that the decision was delivered without considering the irregularities committed by the trial Tribunal for visiting the *locus quo* without the applicant's advocate contrary to the law as pleaded under paragraph 5 of the applicant's affidavit. He claimed that, the

applicant was required to lodge notice to the Court of Appeal within 30 days as required by the law, whereby the applicant failed to do so. The learned counsel asserted that, the applicant failed to comply with the said requirement as he was sick from 25th November, 2025 to 24th December, 2025. That the same is pleaded under paragraph 4 of the affidavit. It was his assertion that due to long time sickness the applicant found himself out of time to file notice of appeal to the Court of Appeal.

He averred that sickness is a sufficient ground to warrant extension of time to file the notice of appeal out of time. He fortified his argument by relying on the case of **Heri Investment Ltd vs Dongxing International Real Estate Ltd**, Civil Application No. 65/01 of 202 CAT available at TanzLII and **Murtaza Mohamed Raza Virani & Another vs Mehboob Hassanali Versi**, Civil Application No.448 of 2020 (unreported) where the Court of Appeal held that sickness is a good cause for extension of time. He averred that the applicant attached medical sheet under paragraph 4 of the supporting affidavit as proof that he was sick. That, the applicant's delay was not caused by negligence but by sickness. He prayed for the application to be allowed with costs.

Countering the application, Mr. Mbogoro argued that, extension of time to file notice of appeal out of time is under the discretion of the court to grant or decline. That the discretion has to be exercised judiciously. The learned counsel averred that, the yardstick has always been that for the court to grant such extension, the court must be satisfied that the delay in filing the notice within the prescribed time was occasioned by a sufficient cause. He added that what amounts to a sufficient cause has never been authoritatively defined anywhere in our jurisprudence.

While adopting the counter affidavit, the learned counsel contended that, the good cause of delay deponed by the applicant is sickness, however, the medical chit attached is doubtful as to its authenticity. He plainly argued that since the application is not a murder trial, then on such premises let it be taken that what has been deponed in the applicant's affidavit to be correct and true. Nonetheless, he averred that, it is his submission that, the ground advanced by the applicant did not amount to sufficient cause. He argued that the ground could have been sufficient had it been that the applicant was unrepresented. He challenged the reason that the applicant was availed with 30 days exemption. He claimed that the applicant was not prevented from contacting his advocate through the

mobile and instruct him to lodge the notice of appeal within the prescribed time.

Mr. Mbogoro argued that the applicant has all along been engaging the same advocate from the District Land and Housing Tribunal to the High Court and the instant application. That had it been that the applicant filed the application unrepresented, then the ground of sickness could hold water. He distinguished the cases cited by the applicant's learned counsel. He added that it is a settled principle that each case has to be determined according to its own peculiar facts.

The learned counsel claimed that the grounds of appeal which the applicant intends to rely upon should at least have some prospects of success. That under paragraph 5 of the supporting affidavit, the applicant deponed that if the application will be granted, the ground of appeal will be to the effect that the High Court erred in law and fact in not holding that the visit by the District Land and Housing Tribunal to the *locus in quo* without the parties' advocate was fatal. He challenged the anticipations of success by stating that when the date was scheduled for the visit to the

locus in quo the advocates and parties were in attendance, as a result, no likelihood of success.

He concluded his submission by stating that the applicant has not furnished a good cause to warrant extension of time by the honourable court. He prayed for the application to be dismissed with costs. There was not rejoinder made by the applicant's learned counsel.

I have carefully read the submissions of the parties, supporting and counter affidavit. I found that the main issue for determination is whether the applicant has adduced sufficient reason to move the court to grant the prayer sought in the application.

It is a settled law that the application for extension of time can only be granted upon the applicant adducing good ground and or sufficient reason(s) for the delay. This requirement can be discerned from what was clearly stated in the case of **Mumello vs Bank of Tanzania** [2006] E.A. 227 and **Benjamin Amon vs Republic** (Criminal Application 106 of 2018) [2020] TZCA 335 (23 April 2020). In the former case, the Court of Appeal held that:

"...an application for extension of time is entirely in the discretion of court to grant or refuse and that extension of time may only be granted where it has been sufficiently established that the delay was due to sufficient cause"

It is clear from this excerpt that for the Court to grant extension of time to file a notice of appeal out of time, the applicant has to adduce sufficient cause. The Court of Appeal discussed how the Court can exercise discretion to grant an application for extension of time in the case of **Benjamin Amon vs Republic** (supra). The Court had this to say:

"In exercising its discretion of whether or not to grant extension of time the Court is required to consider the following factors which may not be exhaustive, but at the moment they include, that:

(a) the applicant must account for all the period of delay;

(b) the delay should not be inordinate;

(c) the applicant must show diligence, and not apathy, negligence or sloppiness of the action that he intends to take; and

(d) if the court feels that there are other sufficient reasons, such as existence of a point of law of sufficient importance such as the illegality of the decision sought to be challenged.

See also the case of **Lyamuya Construction Company Limited vs Board of Registered Trustees of Young Women Christian Association of Tanzania**, Civil Application No. 02 of 2010.

As per the applicant's sworn affidavit and the submission thereto, it has been asserted that the applicant was prevented from lodging his notice of appeal timely on a reason that he was sick from 25th November to 24th December, 2025. The same has been deposed under paragraph 4 of the supporting affidavit. That he was administered with medication to be used in 30 days and exemption of duties. The reason has been challenged by the respondent's learned counsel arguing that, the medical chit attached did not prevent the applicant from communicating and instructing his advocate. He added that the same advocate represented the applicant from the trial Tribunal to the High Court, hence, the reason of illness cannot stand.

From the submission for and against by the parties, I wish to rely on the principle laid down in the case of **Benjamin Amon vs Republic** (supra) while meditating on the rival submissions. The respondent's learned counsel averred that the applicant was represented by the same advocate from the trial Tribunal to the High Court and even in the instant application as submitted by the respondent's learned counsel. That, he should have instructed the learned counsel to lodge the notice of appeal to the Court of Appeal. In addition, the medical chit does not tell whether he

was admitted in hospital for medication and was not allowed to communicate in any means.

The applicant was required to account for all days delayed from when the decision was delivered by the High Court to the time he filed the instant application. This is due to the fact that judgment was delivered on 21st November, 2025 whereby 30 days lapsed on 20th December, 2025. The instant application was filed on 6th January, 2026 which is a delay of 17 days. The learned counsel just pleaded illness while attaching the medical chit which covered 30 days which ended on 24th December, 2025 without stating whether the applicant was stable or not after that date. Additionally, he has not counted for the time from 25th December, 2025 to 6th January, 2026 when he filed the application. As submitted by the respondent's learned counsel, that the same advocate represented the applicant from the trial Tribunal to the High Court, there is untold story as to why the applicant did not instruct his advocate to lodge the notice of appeal in time. Verily, sickness is a ground for extension of time, however, the Court does not accept it blindly. It must cover the period of delay. This was well elaborated in the case of **Juto Ally vs Lukas Komba &**

Another (Civil Application 484 of 2019) [2020] TZCA 354 (15 July 2020)

where the Court held:

"Indeed, she has also not explained how her illness contributed to the delay as the medical evidence she attached to her affidavit concerns the period specifically for the dates when she attended to hospital on 8th October, 2016 and 19th June, 2016. Besides, there is no indication that on those particular dates she was admitted and for how long. The only indication is that she attended at Mwananyamala Hospital as an outpatient where she was attended and allowed to go to her residence on both occasions."

From the authority above, the applicant's medical chit should have covered the whole period of delay. That is from the time he claimed to have fallen sick to the date of filing the instant application. Nonetheless, he was not admitted to hospital. He was a mere out patient who was attended on 25th November, 2025 only. That leaves a lot of questions without answers.

It is a settled law that the applicant has to account for each day of delay. See the case of **Shabani Mrisho Dilunga vs Rajabu Saidi Mgonanze**, Miscellaneous Land Application No. 50 of 2023 and **Hassan Bushiri vs Latifa Lukio Mashayo**, Civil Application No. 3 of 2007 (both unreported) where the Court of Appeal insisted that, the applicant should account for each day of delay. The Court held that:

"Delay of even a single day has to be accounted for. Otherwise, there would be no point of having rules prescribing periods within which certain steps have to be taken."

Guided by the principle accentuated in the authorities cited above, it is my view that, the applicant having finished the 30 days prescribed under the medical chit, should have accounted for the delay of 17 days after medication. I am convinced in the instant application, the applicant failed to account for each day of the delay. Hence the issue raised is answered in the negative.

From the foregoing, the applicant has failed to adduce sufficient cause to warrant extension of time to lodge notice of appeal to the Court of Appeal out of time. Consequently, the application is hereby dismissed with costs.

It is so ordered.

DATED and **DELIVERED** at **SONGEA** this 31st day of August, 2026.



E.L. KAWISHE

JUDGE

Court: Ruling delivered in the presence of Flumensi Louga applicant and Matei Mhagama respondent.



A handwritten signature in blue ink, appearing to read "E.L. Kawishe", enclosed within a blue oval border.

E.L. KAWISHE

JUDGE

31/8/2026